

25NNCV02823 25NNCV02823

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C08%2F07%2F2026

Source SHA-256: 7784f6f3cc0d2bb6dfa257a64a8ba110f7a4958c0ff3e9ab9ff38286ceeb3e99

Case Number: 25NNCV02823 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: August 7, 2026

Case No: 25NNCV02823 Trial Date: Not yet set

Case Name: Schlenz v. Santo Tomas Dental Group, Inc, et al.

MOTION TO STRIKE

[CCP § 436]

Moving Party: Defendant, Victor Israel, DMD (erroneously sued and served as Victor Israel DMD, DDS)

Responding Party: Plaintiff, Edith Felicitas Schlenz

RELIEF REQUESTED:

Strike the references to and requests for punitive damages.

CAUSES OF ACTION: from First Amended Complaint

1) Dental Malpractice

2) Lack of Informed Consent

3) Financial Elder Abuse [Welfare & Institutions Code § 15610.30]

4) Unfair Business Practices [Business & Professions Code § 17200]

5) Fraud

6) Medical Battery

7) Intentional Infliction of Emotional Distress

SUMMARY OF FACTS:

Edith Felicitas Schlenz ("Plaintiff") alleges that on April 25, 2025, Plaintiff, a 75-year-old senior citizen, visited defendants Santo Tomas Dental Group, Inc. and Evan Farr DDS, Inc. dba Santo Tomas Dental Group's office for a dental consultation for an estimate to replace her partial upper dentures. Plaintiff alleges that despite her request for a quote to replace her partial upper dentures only, Defendants prepared an estimate for a treatment plan that included full upper dentures with two dental implants, and full lower dentures with six dental implants costing approximately \$35,000.00. Plaintiff alleges that without her consent, defendant Victor Israel, DMD, DDS ("Israel") extracted two of Plaintiff's healthy, natural teeth, and placed two dental implants.

The Complaint further alleges that, without Plaintiff's knowledge or consent, Defendants secured a loan in Plaintiff's name in the amount of \$30,000.00 with an APR of 20.49% and monthly payments of \$675.07, totaling \$56,705.88 in payments over the life of the loan. The Complaint alleges that Defendants also secured an additional line of credit in the amount of \$3,000.00 to be repaid over 60 months at an APR of 17.99%, without Plaintiff's consent. Plaintiff alleges that she did not agree to finance any dental work, did not authorize the creation of a credit account, and was not informed about the nature of these financial agreements. Plaintiff alleges that she is on a fixed income from Social Security and should never have qualified for these loans. She alleges that Defendants fraudulently obtained and misused her financial information to secure these credit lines for services to which she did not knowingly agree. Plaintiff alleges that the debts have caused her severe emotional distress, physical pain and financial hardship.

ANALYSIS:

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP, § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Punitive Damages

Israel argues that Plaintiff cannot seek punitive damages against a medical professional for claims arising out of medical malpractice or professional negligence without first obtaining leave from the Court. (Mot., p. 3:3-12.) The motion argues that Plaintiff's causes of action against Israel are directly related to the dental services provided to Plaintiff by Israel, in Israel's capacity as a healthcare provider. (Mot., p. 7:3-4.) Accordingly, Israel argues that Plaintiff must comply with the requirements of CCP section 425.13 before including a claim for punitive damages in the FAC. (Mot., p. 7:10-15.)

"In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that

includes a claim for punitive damages to be filed." (CCP, § 425.13.) This requirement applies not only to actions which are designated professional negligence actions, but to actions against a health care provider where the injuries alleged as the basis of the claim were caused by conduct that was "directly related to the rendition of the professional services provided by the healthcare provider." (Central Pathology Service Medical Clinic, Inc. v. Superior Court (1992) 3 Cal.4th 181, 191-192 ["We hold that whenever an injured party seeks punitive damages for an injury that is directly related to the professional services provided by a health care provider acting in its capacity as such, then the action is one "arising out of the professional negligence of a health care provider," and the party must comply with section 425.13(a)."].)

Here, Plaintiff seeks punitive damages in connection with her financial elder abuse and IIED claims. (FAC, ¶¶ 53, 80.) Punitive damages may be alleged against a healthcare provider without a party first complying with CCP section 425.13 when the gravamen of the claim is a violation of the elder abuse act. (See Country Villa Claremont Healthcare Center, Inc. v. Superior Court (2004, 2nd Dist.) 120 Cal.App.4th 426, 435.)

Thus, the request to strike the punitive damage request in paragraph 53 pursuant to the elder abuse cause of action is DENIED.

Plaintiff's IIED claim is premised on two categories of alleged injuries: those arising from the provision of dental services and those arising from the submission of unauthorized loan applications. (FAC., ¶ 75.) Unauthorized loan applications bear no relationship to rendering medical treatment. Accordingly, punitive damages related to these claims would fall outside the scope of section 425.13. In contrast, Plaintiff's injuries resulting from the unauthorized teeth extraction and dental implants are directly related to the services provided by Israel in Israel's capacity as a healthcare provider. Here, however, the FAC specifically alleges that Plaintiff's request for punitive damages in connection with her IIED claim is based solely on "Defendants' extreme and outrageous conduct in initiating financial loans on Plaintiff's behalf without her consent." (FAC, ¶ 80.) Accordingly, the FAC makes clear that Plaintiff does not seek punitive damages based on the allegedly negligent rendition of medical services, but rather solely on Defendant's alleged fraudulent conduct in obtaining financial loans in Plaintiff's name.

Thus, the request to strike the punitive damage request in paragraph 80 pursuant to the IIED cause of action is DENIED.

In light of the Court's denial of the requests to strike the punitive damages allegations in the FAC, the request to strike Plaintiff's prayer for punitive damages is likewise DENIED.

RULING:

Defendant Victor Israel, DMD's Motion to Strike is DENIED.

Defendant is to file an answer within 10 days of this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.